Torrent Energy Ltd vs Dakshin Gujrat Vij Company on 5 July, 2010

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                                        COURT - I

                        Before the Appellate Tribunal for Electricity
                                  (Appellate Jurisdiction)
                                   Appeal No. 66 of 2010
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Dated: 5 July, 2010

Present :     Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
              Hon'ble Mr. Rakesh Nath, Technical Member
              Hon'ble Mr. Justice P.S. Datta, Judicial Member

In the matter of:

Tororent Energy Ltd.                                          .... Appellant (s)
            Versus
Dakshin Gujrat Vij Company Ltd. & Ors.                      ... Respondent (s)

Counsel for the Appellant (s) : Ms. Deepa Chawan, Mr. H.S. Jaggi. Advs. with
                                 Mr. S. Shah, Vice President(Finanace)
Counsel for the Respondent (s) : None
                                         ORDER
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Heard the learned counsel for the Appellant. Earlier this matter was adjourned on the ground that a Review Petition is pending before the State Commission. It is noticed that as against the impugned order passed by the State Commission, a Review Petition had been filed on 29th December, 2009 and thereafter the Appellant has chosen to file this Appeal before this Tribunal on 4th January, 2010.

Now it is pointed out that even though the Review Petition was filed on 29th December, 2009 the same has still not been disposed of.

As mentioned in the earlier order we are not inclined to entertain this Appeal especially when the Review Petition is pending before the State Commission on the same point.

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Therefore, it would be appropriate to dispose of this Appeal by giving liberty to the Appellant to file the Appeal before this Tribunal after disposal of the Review Petition, pending before the State Commission, if so required. Accordingly, ordered.

As requested by the learned counsel for the Appellant we deem it appropriate to direct the State Commission to dispose of the Review Petition No. 997 of 2010 filed by the Appellant within four weeks from receipt of this order. Accordingly directed With these observations this Appeal is

disposed of.

(Justice P.S. Datta) (Rakesh Nath) (Justice M. Karpaga Vinayagam) Judicial Member Technical Member Chairperson Dated : 05.07.2010 za/ksm